

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #10	CCRB Case #: 201706673	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/04/2017 9:00 PM	Location of Incident: 72nd Precinct stationhouse	Precinct: 72	18 Mo. SOL 9/4/2018	EO SOL 9/4/2018	
Date/Time CV Reported Tue, 08/15/2017 12:31 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 08/15/2017 12:31 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mehmet Kanbur	04045	937826	072 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kevin Morales	01933	959827	072 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Mehmet Kanbur	Discourtesy: Police Officer Mehmet Kanbur spoke discourteously to § 87(2)(b)	
B.POM Mehmet Kanbur	Abuse: Police Officer Mehmet Kanbur refused to provide his name and shield number to § 87(2)(b)	

Case Summary

On August 15, 2017, § 87(2)(b) an attorney, filed this complaint with the CCRB via email on behalf of his client, § 87(2)(b) § 87(2)(b) did not witness the incident himself.

At approximately 9:00 p.m. on March 4, 2017, § 87(2)(b) was pulled over by PO Kevin Morales and PO Mehmet Kanbur of the 72nd Precinct near the intersection of 39th Street and 5th Avenue, in Brooklyn. § 87(2)(b) did not have a valid driver's license at the time. When the officers discovered this, they placed § 87(2)(b) under arrest and transported him to the 72nd Precinct stationhouse.

§ 87(2)(b) had a pre-existing injury to his knee that caused him pain. While § 87(2)(b) arrest was being processed at the stationhouse, the pain in his knee caused him to fall to the floor. PO Kanbur allegedly mocked § 87(2)(b) by calling him a "pussy" (**Allegation A**). PO Kanbur lodged § 87(2)(b) in a holding cell, where he again called § 87(2)(b) a "pussy" (**Subsumed in Allegation A**).

Later, when PO Kanbur was taking § 87(2)(b) fingerprints, § 87(2)(b) allegedly asked for his name and shield number. PO Kanbur allegedly replied, "You can call any fucking lawyer" (**Allegation B, Subsumed in Allegation A**). Later, when § 87(2)(b) was in the holding cell, PO Kanbur allegedly presented § 87(2)(b) with an unidentified form and asked him to sign it. § 87(2)(b) refused to do so. PO Kanbur argued with § 87(2)(b) and tried to get him to sign the form. He allegedly used the word "fuck" during this argument (**Subsumed in Allegation A**).

§ 87(2)(b) was eventually released from custody with a desk appearance ticket (DAT). He was charged with § 87(2)(b) § 87(2)(b)

No video was found for this incident.

Mediation, Civil and Criminal Histories

- This case is ineligible for mediation because § 87(2)(b) filed a lawsuit in regards to this incident. He filed a Notice of Claim with the NYC Comptroller's office on § 87(2)(b). He alleges loss of liberty, mental anguish and financial loss, and seeks \$100,000 in damages (See Board Review #01: Notice of Claim).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB case filed by or on behalf of either § 87(2)(b) or § 87(2)(b) (See Board Review #03: Civilian CCRB Histories).

- PO Kanbur has been a member of the service for twelve years and there are no substantiated CCRB allegations against him. He has been the subject of twelve allegations in five previous cases. One previous allegation of refusal to provide name and shield number was closed as unfounded. Two previous discourtesy allegations were closed as unsubstantiated.

Potential Issues

- § 87(2)(b) filed this complaint approximately five months after the incident. He explained that he delayed filing the complaint until after the conclusion of § 87(2)(b) criminal case.
- § 87(2)(b) participated in a 50-H hearing on § 87(2)(a) Gen.Mun. §50-H(3). During § 87(2)(b) sworn statement, § 87(2)(b) agreed to provide the CCRB with a transcript of the hearing. To date, § 87(2)(b) has not forwarded the transcript. On November 9, 2017, a voicemail was left with § 87(2)(b)'s office to inquire after the transcript. It will be included in the case file upon receipt.
- § 87(2)(b) stated that there was at least one other prisoner in the holding cell with him when PO Kanbur used profanity towards him. A review of the prisoner holding pen roster showed that there were two other prisoners who were held along with § 87(2)(b) and § 87(2)(b) (See Board Review #04: Prisoner Holding Pen Roster). Searches of the BADS, CLEAR and Lexis Nexis databases returned one address and two telephone numbers for each of them. Between September 28, 2017 and October 20, 2017, five telephone calls were made to each of their telephone numbers. One of § 87(2)(b) numbers was found to be incorrect, and one of § 87(2)(b)'s numbers was consistently found to be out of service. Voicemails were left on each call made to the remaining two numbers. Three please-call letters were mailed to each witness between September 28, 2017 and October 13, 2017. None of these letters have been returned to the CCRB by the US Postal Service. To date, neither § 87(2)(b) nor § 87(2)(b) has responded to these contact attempts.

Findings and Recommendations

Allegations Not Pleaded

- **Abuse of Authority – Vehicle Stop:** § 87(2)(b) was pulled over by PO Kanbur and PO Morales near the intersection of 39th Street and 5th Avenue. PO Kanbur and PO Morales both stated that § 87(2)(b) was initially pulled over for failing to use his turn signal. When they approached § 87(2)(b) vehicle, they found that he did not have a valid driver's license. He was subsequently arrested and charged with § 87(2)(b). § 87(2)(g)
- **Discourtesy – Word:** § 87(2)(b) alleged that when he was first lodged in the holding cell, several unidentified officers mocked him and used profanity towards him. He could not recall what any of these officers looked like. He did not recall any specific

statements that the officers made or any profane words that they used. § 87(2)(g)

Allegation A –Discourtesy: Police Officer Mehmet Kanbur spoke discourteously to § 87(2)(b)

Allegation B –Abuse of Authority: Police Officer Mehmet Kanbur refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on September 12, 2017 (See Board Review#05: § 87(2)(b) Statement). He alleged that as soon as he entered the 72nd Precinct stationhouse, pain in his knee caused him to fall to the floor. § 87(2)(b) started to cry and complained to PO Kanbur that his knee hurt. PO Kanbur mocked § 87(2)(b) by calling him a “woman” and a “pussy.” PO Kanbur lodged § 87(2)(b) in a holding cell. There, he again called § 87(2)(b) a “pussy.” Later, PO Kanbur brought § 87(2)(b) into another room in order to fingerprint him. § 87(2)(b) asked PO Kanbur for his name and shield number. PO Kanbur replied, “You can call any fucking lawyer.” He did not provide his name or shield number. § 87(2)(b) was then returned to the holding cell. PO Kanbur presented § 87(2)(b) with an unidentified form and asked him to sign it. § 87(2)(b) denied that the form was a DAT. He refused to sign PO Kanbur’s form. Several other unidentified officers spoke to § 87(2)(b) one-on-one and attempted to get him to sign it, but § 87(2)(b) refused to do so. PO Kanbur then spoke to § 87(2)(b) again and asked him once more to sign. § 87(2)(b) took the form and wrote the words “I do not want to sign” on it. PO Kanbur tore up the form and accused § 87(2)(b) of “playing games.” PO Kanbur used the word “fuck” while making this remark, but § 87(2)(b) did not recall exactly how he phrased it. § 87(2)(b) denied signing the unidentified form at any time.

PO Kanbur was interviewed at the CCRB on October 30, 2017 (See Board Review #06: PO Kanbur’s Statement). He stated that when he and PO Morales attempted to walk § 87(2)(b) into the holding cell area, § 87(2)(b) deliberately attempted to drop his own weight and fall to the floor. PO Kanbur caught him before he fell. § 87(2)(b) did not make contact with the floor at any time. PO Kanbur lodged § 87(2)(b) in the holding cell. He denied calling him a “pussy” or a “woman” at that time. PO Kanbur later brought § 87(2)(b) into the fingerprinting room. No other officer accompanied them at the time. PO Kanbur denied that § 87(2)(b) asked for his name or shield number in the fingerprinting room or at any other point during the incident. He denied telling § 87(2)(b) “You can call any fucking lawyer.” PO Kanbur returned § 87(2)(b) to the holding cell after he was fingerprinted. There, PO Morales presented § 87(2)(b) with a copy of the DAT, which § 87(2)(b) signed without objection. Neither PO Kanbur nor any other officers showed any other forms to § 87(2)(b) besides the DAT. PO Kanbur denied that § 87(2)(b) refused to sign any paperwork. He denied using the word “fuck” while speaking to § 87(2)(b). He denied using any profanity towards § 87(2)(b) during the incident.

PO Morales was interviewed at the CCRB on October 27, 2017 (See Board Review #07: PO Morales' Statement). § 87(2)(g). He denied hearing PO Kanbur call § 87(2)(b) a "pussy" or a "woman" when § 87(2)(b) was first being lodged in the holding cells. He denied being present when § 87(2)(b) was fingerprinted. He denied hearing § 87(2)(b) request any officer's name or shield number. He also stated that he presented § 87(2)(b) with a copy of the DAT while he was in a holding cell, and that § 87(2)(b) signed it without offering any objections. He denied that PO Kanbur used the word "fuck" while addressing § 87(2)(b). He denied hearing PO Kanbur or any other officer use profanity during the incident.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g).

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date